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ORIGINAL

BEFORE THE FEDERAL MARITIME COMMISSION

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FEDERAL MARITIME COMMISSION

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

Complainant,

v

WORLD EXPRESS SHIPPING,
TRANSPORTATION AND FORWARDING
SERVICES, INC , an Illinois corporation,
d/b/a W.E S T FORWARDING SERVICES
(FMC Lic.# 3 118-R),

Respondent.

Docket No 00-04

HON NORMAN D KLINE

**COMPLAINANT AL KOGAN'S RESPONSES AND OBJECTIONS
TO RESPONDENT WEST FORWARDING'S
REQUEST FOR PRODUCTION OF DOCUMENTS**

TO Peggy Chaplin
SANDLER, TRAVIS & ROSENBERG, P A.
111 South Calvert Street
Baltimore, MD 21202

Francesca Russo-Di Staulo
SANDLER, TRAVIS & ROSENBERG, P A.
The Waterford - Suite 600
5200 Blue Lagoon Drive
Miami, FL 33 126-2022

NOW COMES Complainant AL KOGAN d/b/a GALAWAY INTERNATIONAL
(Al Kogan"), by and through his attorney, Jonathan Clark Green, P C , and submits the
following responses and objections to Respondent WEST Forwarding's Request for
Production of Documents

General Response to Request Nos. 1-11. In response to Request Nos 1 through 11,
Al Kogan refers Respondent to the documents already produced by him to Respondent in
this matter in the state court case of WEST Forwarding v. Al Kogan, 99 MI 116394,
currently pending in the Circuit Court of Cook County, Illinois, as well as those documents
produced by Respondent to Al Kogan in that case The only additional documents that Al

Kogan has to produce at this time are the attached documents regarding insurance coverage on the Container in question. Al Kogan is continuing his investigation, and will seasonably update these production request responses if additional documents become available

For the convenience of all parties in this matter in light of the upcoming scheduled depositions, as well as the Commission, Al Kogan has sorted all the documents produced in this matter in general chronological order and is presently having them Bates stamped. As soon as the Bates-stamped copies become available, within the next couple of days, complete sets of the produced documents will be forwarded to opposing co-counsel in this matter, with the specific page references requested in Request Nos 1-1 1

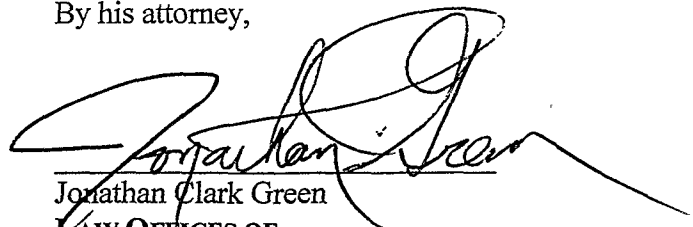
It should be noted here that, other than the insurance-related documents attached hereto, the vast majority of all documents produced have come from WEST Forwarding's own production of documents in the state court case, reflecting WEST Forwarding's total control of this transaction, where it refused to produce information or documentation earlier to Al Kogan when requested to do so. Other documents have come from the limited file materials that Al Kogan did possess in this matter and the official file production of Joe Farrell of the Federal Maritime Commission in response to a formal request from Al Kogan for a copy of the FMC file on the matter (reference number F2987), sent in August of 1999

Specific Objection to Request No. 10 Production is objected to on the grounds of being overly vague and ambiguous, speculative, overly broad and burdensome, and redundant. Without waiving said objections, Al Kogan at this time plans to introduce at trial as many of the produced documents as possible in support of his claim against WEST Forwarding. As depositions and discovery proceed in this case, Al Kogan will likely reduce the number of documents to be used at trial and formally declare its exhibits in this case's pre-trial order, as appropriate

Respectfully submitted,

AL KOGAN d/b/a GALAWAY
INTERNATIONAL

By his attorney,



Jonathan Clark Green
LAW OFFICES OF
JONATHAN CLARK GREEN, P.C.
350 North LaSalle Street, Suite 800
Chicago, IL 606 1 O-4798
(312) 494-1000

VERIFICATION

State of Illinois)
)
County of Cook) ss.

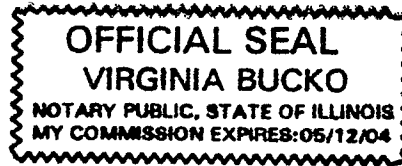
AL KOGAN, doing business as Galaway International, being first duly sworn on oath, deposes and says that the above COMPLAINANT AL KOGAN'S RESPONSES AND OBJECTIONS TO RESPONDENT WEST FORWARDING'S REQUEST FOR PRODUCTION OF DOCUMENTS are true and correct to the best of his knowledge

AL KOGAN d/b/a GALAWAY
INTERNATIONAL

A. Kogan

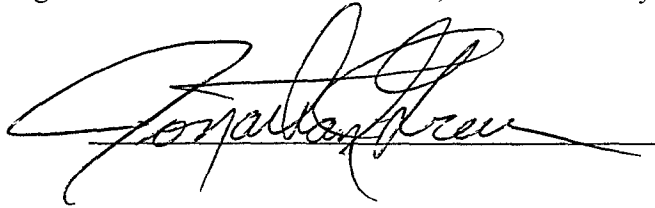
SUBSCRIBED and SWORN to
before me this 10th day
of July, 2000.

Virginia Bucko
Notary Public



CERTIFICATE OF SERVICE

I, Jonathan Clark Green of LAW OFFICES OF JONATHAN CLARK GREEN, P C , attorney for Complainant Al Kogan *d/b/a* Galaway International, hereby certify that I caused a copy of the foregoing COMPLAINANT AL KOGAN'S RESPONSES AND OBJECTIONS TO RESPONDENT WEST FORWARDING'S REQUEST FOR PRODUCTION OF DOCUMENTS, with attached verification, to be served upon Peggy Chaplin via facsimile transmission at (410) 837-2441 and to be served upon the above names at the above addresses by depositing same in the United States Mail, on this 10th day of July, 2000

A handwritten signature in black ink, appearing to read "Jonathan Clark Green", is written over a horizontal line.

BLACK SEA AND BALTIC

RUN-OFF SERVICES LIMITED

65, FENCHURCH STREET, LONDON EC3M 4EY

Tel 0171 509 2000 Fax 0171 702 3557

Registered in England No. 3599984

Registered Office: 35 St Thomas St London SE1

Jonathan Clark Green P.C
350, North LaSalle St:
Suite 800
Chicago
Illinois
60610 4797
USA

Attention Jonathan Clark Green

Date: 25 August 1999
Our Ref: C27490/MJO/99/193
YourRef:

Dear Sirs

Black Sea & Baltic General Insurance Company Limited
(In Provisional Liquidation)
Re "Notice of Loss on Cert:No: 86444"

We are in receipt of your letter dated 3rd August 1999 the contents of which have been noted, and in reply we would advise that, since we have received no previous notice of a loss against the above mentioned insurance cover, we will be reluctant to consider any claim, as this shipment was transported to Moscow more than a year ago. Also, we would advise that Black Sea & Baltic General Insurance Company Limited went into provisional liquidation on the 24th August 1998, and therefore Assured will become creditors against the Estate of the Company for any amount which is found to be due to them.

We would advise that this insurance was under Cover No: DC524, and we have requested UK Brokers: Ropner Insurance Services to supply to us a full copy of the insurance certificate (Conditions were not attached to your enclosure) as this was issued by their contact in the USA. Upon receipt of this information, we will be in a better position to give you more information, but in the meantime we should be pleased to have from you details of the loss claimed.

Yours faithfully


M.J. Osborne
Marine Claims Dept

**BLACK SEA AND BALTIC
RUN-OFF SERVICES LIMITED**
65 FENCHURCH STREET LONDON EC3M 4EY

FACSIMILE MESSAGE NO:

Phone: 0171 509 2000

Page No 1 of 5

Fax 0171 702 3557

TO: Jonathan Clark Green P.C
ATTN: Jonathan Clark Green
FAX NO: 001 312 494 1009
FROM: M.J. Osborne
DATE: 27 August 1999
OUR REF: F08986/JCG/99/193
SUBJECT: **Black Sea & Baltic General Insurance Co; Ltd:**
(In **Provisional** Liquidation)
Re **"Notice of Loss on Cert: No: 86444"**

Please advise by return fax, or telephone **0171 509 2000**
extension 211, if message is incomplete or unreadable.

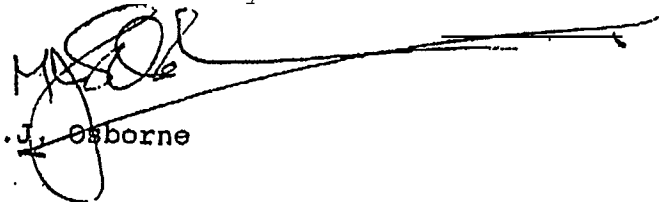
Dear Sirs

Further to **our** letter dated 25th August 1999, we attach hereto a **copy** of the relevant Insurance Certificate together with the **ICC "A"** Clauses which we hope will be of assistance to you.

As previously advise, due to the very late notification of **this** alleged claim, we will be reluctant to consider this case, However, if you **do intent** pursuing this matter further, then we will urgently need the following documentation and information:

Full details of loss **claimed**
Original Insurance Certificate
Bill of Lading/CMR Note
Supplier's Invoice
Outturn Report/Delivery Notes
Notice of loss **given** to those responsible for loss
In case of damage. Are damaged **items** available for examination?

Yours faithfully


M.J. Osborne

BLACK SEA AND BALTIC GENERAL INSURANCE COMPANY LIMITED

65 FENCHURCH STREET, LONDON EC3M 4EY

Certificate **8 6 4 4 4**

£ USD 80,784

It is hereby certified that this Company has insured under *Open Cover/Policy No.* 97G500C034
in the sum of *Eighty thousand seven hundred and eighty four US Dollars*
in favour of *West Forwarding/Gallaway Int'l Co.*
who have deposited *a/the said* policy covering this certificate with this Company on behalf of all
parties interested and have requested this Company to pay any claim arising under the said policy in
respect of the said interest to their order

In accordance with the above request this Company will pay on production of the Invoices
and Bills of Lading, and in exchange for this Certificate, both fully endorsed, any lawful claim
arising on said Policy in respect of the interest insured thereunder. It being understood that notice
of such claim be given by the holder of this Certificate to this Company as soon as practicable.

It is agreed by the holder of this Certificate that in the event of loss or damage notice in writing
shall be given to the Company

Vessel "ZIM JAPAN" V.21 &/or Steamers &/or Conveyances

Voyage Chicago via New York to Moscow via Kotka

Interest insured

1 x 40' container ZCSU214858-0 said co contain 2359 cases auto care
products.

Ref: CHE-030492

Conditions

As attached.

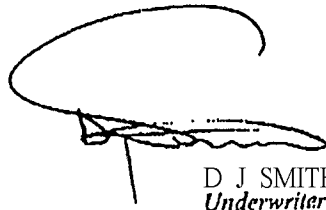
Countersigned this 7 th day
of March 19 98

For and on behalf of

BLACK SEA AND BALTIC GENERAL INSURANCE COMPANY LIMITED



T.C.P. LTD.


D J SMITH
Underwriter



CONDITIONS

Against All risks of physical loss &/or damage, subject to the Conditions and Exclusions of the Institute Cargo Clauses (A) 1 132 CL 252 &/or Institute Cargo Clauses (Air) CL 259 1.1.82. Including Institute Strikes Clauses (Cargo) 1 1 82 CL 256 Including Institute War Clauses (Cargo) 1 1 82. CL 255, 257, or 258 as applicable Institute Classification Clause CL 354 1 8 97 Institute Radioactive Contamination Exclusion Clause (CL 356) 1 10 90 General average and salvage charges payable as provided in the contract of affreightment. For the purpose of claims for general average contribution and salvage charges recoverable hereunder the subject-matter insured shall be deemed to be insured for its full contributory value General average deposits payable on production of general average deposit receipts

Subject to deductible USD250 each & every loss.

1/1/82

(FOR USE ONLY WITH THE NEW MARINE POLICY FORM)

INSTITUTE CARGO CLAUSES (A)

RISKS COVERED

- 1 This insurance covers all risks of loss of or damage to the subject-matter insured except as provided in Clauses 4, 5 6 and 7 below. Risks Clause
- 2 This insurance covers general average and salvage charges, adjusted or determined according to the contract of affreightment and or the governing law and practice, incurred to avoid or in connection with the avoidance of loss from any cause except those excluded in Clauses 4, 5, 6 and 7 or elsewhere in this insurance. General Average Clause
- 3 This insurance is extended to indemnify the Assured against such proportion of liability under the contract of affreightment "Both to Blame Collision" Clause as is in respect of a loss recoverable hereunder in the event of any claim by shipowners under the said Clause the Assured agree to notify the Underwriters who shall have the right, at their own cost and expense, to defend the Assured against such claim. "Both to Blame Collision" Clause

EXCLUSIONS

- 4 In no case shall this Insurance cover General Exclusions Clause
- 4.1 loss damage or expense attributable to wilful misconduct of the Assured
- 4.2 ordinary leakage, ordinary loss in weight or volume, or ordinary wear and tear of the subject-matter insured
- 4.3 loss damage or expense caused by insufficiency or unsuitability of packing or preparation of the subject-matter insured (for the purpose of this Clause 4.3 "packing" shall be deemed to include stowage in a container or liftvan but only when such stowage is carried out prior to attachment of this insurance or by the Assured or their servants)
- 4.4 loss damage or expense caused by inherent vice or nature of the subject-matter insured
- 4.5 loss damage or expense proximately caused by delay even though the delay be caused by a risk insured against (except expenses payable under Clause 2 above)
- 4.6 loss damage or expense arising from insolvency or financial default of the owners managers charterers or operators or the vessel
- 4.7 loss damage or expense arising from the use of any weapon of war employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter
- 5 5.1 In no case shall this insurance cover loss damage or expense arising from Unseaworthiness and Unfitness Exclusion Clause
- unseaworthiness of vessel or craft.
- unfitness of vessel craft conveyance container or liftvan for the safe carriage of the subject-matter insured,
- where the Assured or their servants are privy to such unseaworthiness or unfitness, at the time the subject-matter insured is loaded therein.
- 5.2 The Underwriters waive any breach of the implied warranties of seaworthiness of the ship and fitness of the ship to carry the subject-matter insured to destination, unless the Assured or their servants are privy to such unseaworthiness or unfitness.
- 6 In no case shall this Insurance cover loss damage or expense caused by War Exclusion Clause
- 6.1 war civil war revolution rebellion insurrection, or civil strife arising therefrom, or any hostile act by or against a belligerent power
- 6.2 capture seizure arrest restraint or detainment (piracy excepted), and the consequences thereof or any attempt thereat
- 6.3 derelict mines torpedoes bombs or other derelict weapons of war.
- 7 In no case shall this Insurance cover loss damage or expense Strikes Exclusion Clause
- 7.1 caused by strikers, locked-out workmen, or persons taking part in labour disturbances, riots or civil commotions
- 7.2 resulting from strikes, lock-outs, labour disturbances, riots or civil commotions
- 7.3 caused by any terrorist or any person acting from a political motive.

DURATION

- 8 8.1 This insurance attaches from the time the goods leave the warehouse or place of storage at the place named herein for the commencement of the transit, continuing during the ordinary course of transit and terminates either Transit Clause
- 8.1.1 on delivery to the Consignees' or other final warehouse or place of storage at the destination named herein,
- 8.1.2 on delivery to any other warehouse or place of storage, whether prior to or at the destination named herein, which the Assured elect to use either
- 8.1.2.1 for storage other than in the ordinary course of transit or
- 8.1.2.2 for allocation or distribution,
- or
- 8.1.3 on the expiry of 60 days after completion of discharge overseas of the goods hereby insured from the overseas vessel at the final port of discharge,
- whichever shall first occur.
- 1.2 If, after discharge overseas from the overseas vessel at the final port of discharge, but prior to termination of this insurance, the goods are to be forwarded to a destination other than that to which they are insured hereunder, this Insurance, whilst remaining subject to termination as provided for above, shall not extend beyond the commencement of transit to such other destination.
- 8.3 This insurance shall remain in force (subject to termination as provided for above and to the provisions of Clause 9 below) during delay beyond the control of the Assured, my deviation, forced discharge, re-shipment of transshipment and during any variation of the adventure arising from the exercise of liberty granted to shipowners or charterers under the contract of affreightment.

(Continued)

- 9 If owing to circumstances beyond the control of the Assured either the contract of carriage is terminated at a port or place other than the destination named therein or the transit is otherwise terminated before delivery of the goods as provided for in Clause 8 above, then this insurance shall also terminate unless prompt notice is given to the Underwriters and continuation of cover is requested when the insurance shall remain in force, subject to an additional premium if required by the Underwriters, either
- 9.1 until the goods are sold and delivered at such port or place, or, unless otherwise specially agreed, until the expiry of 60 days after arrival of the goods hereby insured at such port or place whichever shall first occur,
- or
- 9.2 if the goods are forwarded within the said period of 60 days (or any agreed extension thereof) to the destination named herein or to any other destination, until terminated, in accordance with the provisions of Clause 8 above.
- 10 Where, after attachment of this insurance, the destination is changed by the Assured, held covered at a premium and on conditions to be arranged subject to prompt notice being given to the Underwriters.

Termination of Contract of Carriage Clause

Change of Voyage Clause

CLAIMS

- 11 11.1 In order to recover under this insurance the Assured must have an insurable interest in the subject-matter insured at the time of the loss.
- 11.2 Subject to 11.1 above, the Assured shall be entitled to recover for insured loss occurring during the period covered by this insurance, notwithstanding that the loss occurred before the contract of insurance was concluded, unless the Assured were aware of the loss and the Underwriters were not.
- 12 Where, as a result of the operation of a risk covered by this insurance, the insured transit is terminated at a port or place other than that to which the subject-matter is covered under this insurance, the Underwriters will reimburse the Assured for any extra charges properly and reasonably incurred in unloading storing and forwarding the subject-matter to the destination to which it is insured hereunder.
- This Clause 12, which does not apply to general average or salvage charges, shall be subject to the exclusions contained in Clauses 4, 5, 6 and 7 above, and shall not include charges arising from the fault negligence insolvency or financial default of the Assured or their servants.
- 13 No claim for Constructive Total Loss shall be recoverable hereunder unless the subject-matter insured is reasonably abandoned either on account of its actual total loss appearing to be unavoidable or because the cost of recovering, reconditioning and forwarding the subject-matter to the destination to which it is insured would exceed its value on arrival.
- 14 14.1 If any Increased Value Insurance is effected by the Assured on the cargo insured herein the agreed value of the cargo shall be deemed to be increased to the total amount insured under this insurance and all Increased Value Insurances covering the loss, and liability under this insurance shall be in such proportion as the sum insured herein bears to such total amount insured.
- in the event of claim the Assured shall provide the Underwriters with evidence of the amounts insured under all other Insurances.
- 14.2 When this insurance is on Increased Value the following clause shall apply: the agreed value of the cargo shall be deemed to be equal to the total amount insured under the primary insurance and all Increased Value Insurances covering the loss and effected on the cargo by the Assured, and liability under this insurance shall be in such proportion as the sum insured herein bears to such total amount insured.
- In the event of claim the Assured shall provide the Underwriters with evidence of the amounts insured under all other insurances.

Insurable Interest Clause

Forwarding Charges Clause

Constructive Total Loss Clause

Increased Value Clause

BENEFIT OF INSURANCE

- 15 This insurance shall not inure to the benefit of the carrier or other bailee.

Not to Inure Clause

MINIMISING LOSSES

- 16 It is the duty of the Assured and their servants and agents in respect of loss recoverable hereunder
- 16.1 to take such measures as may be reasonable for the purpose of averting or minimising such loss, and
- 16.2 to ensure that all rights against carriers, bailees or other third parties are properly preserved and exercised
- and the Underwriters will, in addition to any loss recoverable hereunder, reimburse the Assured for any charges properly and reasonably incurred in pursuance of these duties.
- 17 Measures taken by the Assured or the Underwriters with the object of saving, protecting or recovering the subject-matter insured shall not be considered as a waiver or acceptance of abandonment or otherwise prejudice the rights of either party

Duty of Assured Clause

Waiver Clause

AVOIDANCE OF DELAY

- 18 It is a condition of this insurance that the Assured shall use with reasonable despatch in all circumstances within their control.

Reasonable Despatch Clause

LAW AND PRACTICE

- 19 This insurance is subject to English law and practice.

English Law and Practice Clause

NOTE- It is necessary for the Assured when they become aware of an event which is "held covered" under this insurance to give prompt notice to the Underwriters and the right to such cover is dependent upon compliance with this obligation.

BLACK SEA AND BALTIC

GENERAL INSURANCE COMPANY LIMITED

(A Member Company of the Association of British Insurers, Lauto
and of Personal Insurance Arbitration Service)

4th Floor, Ibox House, Minorities, London EC3N 1DY

Registered in England No. 204185

Established 1925

Registered Office: 35 St Thomas St. London SE1

Dan Schwarzmann and Colin Bird were appointed as Provisional Liquidators to Black Sea and Baltic General Insurance Company Limited
on 24 August 1998 to manage its affairs, business, and property as its agents.

F A X M E S S A G E

To

Jonathan Clark Green P.C

Fax: 001 312 494 1009

From:

M. J Osborne

Fax: 0171 702 3557

Phone: 0171 509 2000

Attention **Jonathan Clark Green**

Date

16 November 1999

Our Ref:

G16509/JCG/99/193

No of Pages 1

Subject

**Black Sea & Baltic General Insurance Company Limited
(In Provisional Liquidation)**

Re: "Notice of Loss on Cert:No: 86444"

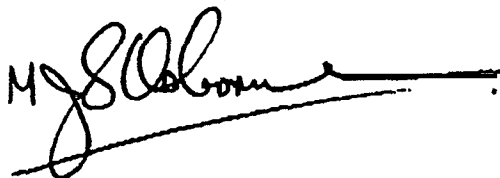
**Please advise by return fax, or telephone 0171 509 2000
extension 211, if message is incomplete or unreadable.**

Dear Sirs

We would refer you to our facsimile messages dated 27th August 1999 and 8th October 1999, and we should be pleased to receive urgently, details of loss incurred, if a claim is being pursued.

If we do not receive a response to this enquiry within the next 30 days, we intend to assume that no further action needs to be taken, and that we can close our file on this case.

Yours faithfully



M. J Osborne
Marine Claims Dept

BLACK SEA AND BALTIC

RUN-OFF SERVICES LIMITED

4th Floor, Ibex House, 42-47 Minories, London, EC3N1DY

Tel 0171 509 2000 Fax 0171 702 3557

Registered in England No. 3599984

Registered Office: 35 St Thomas St London SE1

Jonathan Clark Green P.C
350, North LaSalle St:
Suite 800
Chicago
Illinois
60610 4797
USA

Date: 21 December 1999
Our Ref: C29036/MJO/99/193

Dear Sirs

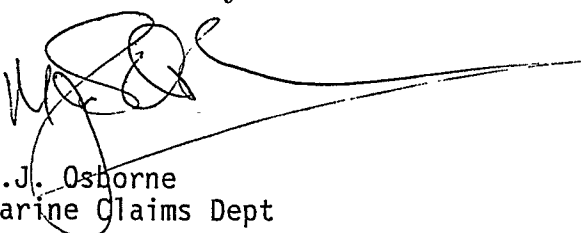
Black Sea & Baltic General Insurance Company Limited
(In Provisional Liquidation)
Re "Notice of Loss on Cert: 86444"

We are in receipt of your letter dated 8th December 1999, together with enclosures, and upon giving this case our further attention, we now note that losses involve damages totalling a value of approximately US\$4,000, found on a shipment which arrived in Moscow during March 1998. However, since we were not informed of this matter, either by your Clients or West Forwarding, at time when this shipment arrived at destination, we consider that our rights to exam and investigate this alleged transit loss have been totally prejudiced. Also we doubt that appropriate notices of claim have been given to Carriers etc; or that rights of recovery against these parties have been protected, by necessary time extensions.

We would draw to your attention that it is a condition of the insurance cover, that prompt notice of loss be given to Underwriters, and in view of this, we regret that we must reject all liability in respect of any shortage/damages incurred to the insured shipment in question, due to the Assured's failure to give notice of loss within a reasonable period of time after arrival at destination.

Notwithstanding our rejection of all liability, we attach for your reference a copy of the Open Cover to which Certificate 86444 relates as requested.

Yours faithfully



M.J. Osborne
Marine Claims Dept



ROPNER INSURANCE SERVICES LTD -QUOTE NUMBER QC07222

=====a=====

TYPE

Marine Cargo Direct

ACCOUNT

Ropner Insurance Services and/or Associated and/or Affiliated and/or Subsidiary Companies and/or as Agents as specified on individual contracts and/or covers and/or policies and/or facultative risks where Ropner Insurance Services etc receive instructions to insure and as may be declared and accepted hereunder at their discretion.

PERIOD

Permanent Open Cover effective 1st June, 1997. This facility may be cancelled by either party, subject to 30 days prior Notice of Cancellation in writing. 7 days Cancellation Clause at any time War, Strikes, Riots and Civil Commotions etc risks, but 48 hours Cancellation Clause for Strikes, Riots and Civil Commotions etc risks to or from U.S.A.

It is specifically noted and agreed that irrespective. of the period of this cover and/or irrespective of the cancellation provisions of this cover, contracts and/or covers and/or policies and/or facultative risks ceded hereunder shall continue until their separate expiry dates but not exceeding 12 months from attachment and/or to be agreed by Leading Underwriters and are deemed to be subject to individual notice of 30 days to be given by the Leading Underwriters only.

INTEREST

CARGO and/or **INTEREST** of any description including Specie declared hereunder and/or any interests incidental to Assured's business as may be declared hereunder. Including increased Value on arrival by reason of liability for and/or payment of freight and/or duty and/or other charges.



Excluding:- Containers leased or otherwise.
Fishmeal.
Rejection.
catch.
Consequential Loss.
Kamigoto Project.
Business Interruption.

Unless specifically accepted and agreed by Leading Underwriters.

CONVEYANCES

LINER and/or STEAMER and/or STEAMERS and/or POWER VESSELS and/or BARGES (in tow or otherwise) and/or POST and/or ANY CONVEYANCES by Land and/or Sea and/or Air as original.

VOYAGES

WORLD - COMMONWEALTH OF INDEPENDENT STATES and/or TERRITORIES FORMERLY COMPRISING U.S.S.R

and/or vice versa.

Risks commencing and ending as original.

Storage risks if and as agreed.

Transhipments if and as agreed.

100% LIMIT

~~US\$ 3,000,000~~

GBP 2,500,000 (or equivalent in any other currency) any one vessel and/or conveyance in respect of any one contract and/or cover and/or policy and/or facultative risk and/or interest for each Assured.

CONDITIONS

All terms, clauses, conditions and settlements etc as agreed.

Including War, Strikes, Riots and Civil Commotions etc as per Institute Clauses.

All cessions hereunder subject to Slip Policy and/or MAR Form.

Institute Radioactive Contamination Exclusion Clause CL356 (1 -10.90).

N.E.R.E.C.

Subject to Institute Classification Clause 13.4.92.

Subject to Institute Service of Suit Clause (U.S.A) as and if applicable as agreed.



BASIS OF ATTACHMENT

Declarations hereunder to attach immediately instructions are received by Ropner Insurance Services and to be advised to Underwriters hereon whose agreement of rates, terms, conditions, additions and amendments etc shall be binding, however Ropner Insurance Services have Underwriters' express permission to accept declarations up to USD50,000 (or equivalent in any other currency) subject- to a minimum premium of USD250 on conditions no wider than Standard Market practice, which to be advised to Underwriters on Monthly Bordereau basis.

PREMIUM

All premium, commission and brokerage to be agreed prior to attachment by Underwriters except as specifically detailed herein.

ALL DEDUCTIONS INCLUDING BROKERAGE

27.5% unless otherwise agreed.

CONDITIONS/WORDING

Institute Cargo Clauses "A" and/or London Market Clauses as may be applicable.

For the purposes of claims for General Average Contributions and Salvage Charges recoverable hereunder the subject matter insured shall be deemed to be insured for its full contributory value.

including War, Strikes, etc risks subject to current Institute or American Institute War, Strikes, Riots and Civil Commotions Clauses.

Open Covers attaching hereto to be treated individually.

Permission is granted to issue Certificates of insurance where required payable in London or abroad subject to the standard wording.

It is specifically noted and agreed that orders received by Ropner Insurance Services will, for risks quoted automatically be covered hereon subject to Leading Underwriter's confirmation on next working day.

100%



				27-6-97		
0	C	5	2	4		

BLACK SEA AND BALTIC

RUN-OFF SERVICES LIMITED

4th Floor, Ibex House, 42-47 Minories, London, EC3N 1DY

Tel 020 7509 2000 Fax 020 7702 3557

Registered in England No. 3599984

Registered Office: 35 St Thomas St London SE1

Jonathan Clark Green P.C
350, North LaSalle St:
Suite 800
Chicago
Illinois
60610 4797
USA

Attention Jonathan Clark Green

Date 7 April 2000
Our Ref: C30210/MJO/99/193

Dear Sirs

Black Sea & Batic General Insurance Company Limited
(In Provisional Liquidation)

Re: "Notice of Loss on Cert: No: 86444"

We are in receipt of your facsimile message dated 30th March 2000, and note your request for us to hold open our file on this case, and although we will maintain a file on this case, we again must reject all liability for any losses relating to this shipment for the following reasons.

As previously advised, we consider the 18 month delay in the notification of this alleged transit damage claim has totally prejudiced the possibility of assessing the nature and cause of the loss. Also this delay will have prejudiced any rights to pursue recovery action against those responsible (Carriers etc;). It is also noted that the alleged damages total approximately US\$4,000 worth of goods, but this figure has not actually been quantified almost 2 years after delivery, or the nature of damage specified, and we consider this situation totally unacceptable.

It would seem that this claim *revolves* around the alleged errors and/or omissions of one of the insured parties named in Black Sea & Baltic General Insurance Company Limited's transit insurance cover, and if this is the case, then under Clause 4/4.1 Underwriters are not liable for the misconduct of the Assured.

✓

It is now noted that it is alleged that this shipment was mis-shipped to Haifa, resulting in extra transit costs, a delay in delivery to Moscow and the subsequent loss of market. If this is the case, then under terms and conditions of the transit insurance cover, Underwriters should have been told immediately of this deviation for this shipment to be held covered to original destination (Clause 9) and this was not done. Also cover excludes any losses resulting from delay (Clause 4/4.5)

Without sight of a copy of the relevant Bill of Lading or CMR Note we are unable to assess the validity of mis-shipment to Haifa, but since the insurance certificate indicates a Zim Line vessel, which we know operate often through Haifa to Russia, it may be that this was the intended route, although the insurance certificate indicates otherwise.

As for the extra expenses said to have been incurred in the on-shipment of this consignment from Haifa to Moscow, which you consider are recoverable under Clause 12 of the insurance cover. We must again reject this portion of any claim, as in our opinion this cover excludes faults and degligence of the Assured, which would seem to be the basis of your claim against West Forwarding.

Yours faithfully



M.J. Osborne
Marine Claims Dept

RECEIVED
MARITIME COMMISSION
JUNE 20 PM 2:40
SECRETARY
FEDERAL MARITIME COMM

HON NORMAN D. KLINE

PLEASE TAKE NOTICE that the deposition of **JEFF A. VICTOR** (“Deponent”), by consent as a third party, in the above-captioned case has been scheduled to be taken, pursuant to the Rules of the Federal Maritime Commission and the Federal Rules of Civil Procedure, on **Tuesday, July 25, 2000**, at the following time and place listed below, by an attorney for the Complainant Al Kogan d/b/a **Galaway International**, before a notary public or some other officer authorized by law to administer oaths

1 00 p m.

LAW OFFICES OF JONATHAN CLARK GREEN, P.C.

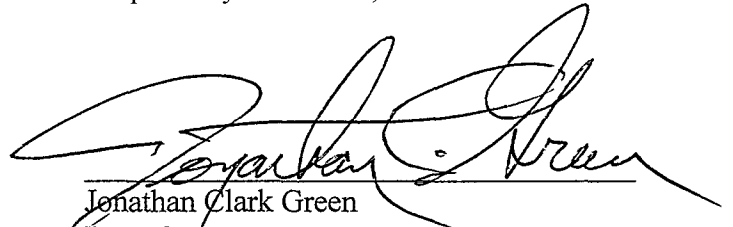
350 North LaSalle Street, Ste 800

Chicago, IL 60610-4798

Deponent will testify to all facts and circumstances surrounding the initiation of the subject shipment through to its conclusion and any related litigation. In addition, Deponent will produce any and all documents in his or her possession related to the subject shipment.

These items will be inspected and may be copied at the time of the deposition. Deponent will not be required to surrender the original items

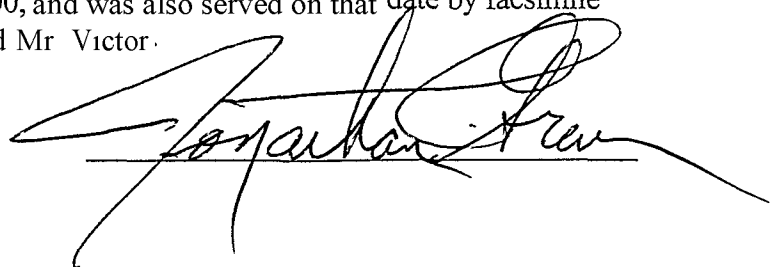
Respectfully submitted,



Jonathan Clark Green
LAW OFFICES OF
JONATHAN CLARK GREEN, P.C.
350 North LaSalle St., Suite 800
Chicago, IL 60610-4798
(312) 494-1000

CERTIFICATE OF SERVICE

The undersigned, being first duly sworn upon oath, deposes and states that a copy of the foregoing NOTICE OF DEPOSITION for Jeff A. Victor was served by **U.S. mail**, proper postage prepaid, on the above names at the above addresses, as well as filed with the Secretary of the Federal Maritime Commission, on July 19, 2000, and was also served on that date by facsimile transmission to Ms Chaplin, Ms Di Stauro and Mr Victor.



SUBSCRIBED and SWORN to
before me this 19th day
of July, 2000

Notary Public

Affidavit of Process Server

00-04

Al Kogax dba Inlaway International vs. World Express Shipping et al
PLAINTIFF/PETITIONER DEFENDANT/RESPONDENT

Being duly sworn, on my oath, I Wilfred A. Mueller
declare that I am a citizen of the United States, over the age of eighteen and not a party to this action.

Service: I served Sath Krzeminski
with the (documents) ☒ Subpoena with \$ NONE NAME OF PERSON/ENTITY BEING SERVED
witness fee and mileage

JUL 25 PM 2:45

FEDERAL MARITIME COMM

by serving (NAME) John DeKeyser

at ☐ Home

☒ Business WEST, Forwarding Services - 729 Rte 83 - Bensenville, IL

☐ on (DATE) July 13, 2000 at (TIME) 9:25 AM

Thereafter copies of the documents were mailed by prepaid, first class mail on (DATE) _____

from (CITY) _____ (STATE) _____

Manner of Service:

☐ By Personal Service.

0 By leaving, during office hours, copies at the office of the person/entity being served, leaving same with the person apparently in charge thereof,

namely John DeKeyser (President)

☐ By leaving a copy at the defendant's usual place of abode, with some person of the family or a person residing there, of the age of 13 years or upwards, and informing that person of the general nature of the papers,

namely _____

☐ By posting copies in a conspicuous manner to the address of the person/entity being served.

Non-Service: After due search, careful inquiry and diligent attempts at the address(es) listed above, I have been unable to effect process upon the person/entity being served because of the following reason(s):

☐ Unknown at Address

☐ Evading

☐ Other: _____

☐ Address Does Not Exist

☐ Service Cancelled by Litigant

☐ Moved, Left no Forwarding

☐ Unable to Serve in a Timely Fashion

Service Attempts Service was attempted on: () _____, () _____, () _____
DATE TIME DATE TIME DATE TIME

() _____, () _____, () _____
DATE TIME DATE TIME DATE TIME

Description: ☒ Male ☒ White Skin ☒ Black Hair ☐ White Hair ☐ 14-20 Yrs. ☐ Under 5' ☐ Under 100 Lbs.
☐ Female ☐ Black Skin ☐ ~ Brown Hair ☒ Balding ☐ 21-35 Yrs. ☐ 5'0"-5'3" ☐ 100-130 Lbs.
☐ Glasses ☐ Yellow Skin ☐ Blond Hair ☐ 36-50 Yrs. ☐ 5'4"-5'8" ☐ 131-160 Lbs.
☐ Red Skin ☐ Gray Hair ☐ 51-65 Yrs. ☒ 5'9"-6'0" ☒ 161-200 Lbr
☐ Mustache ☐ Over 65 Yrs. ☐ Over 6' ☐ Over 200 Lbs.
☐ Beard

OTHER IDENTIFYING FEATURES: _____

State of Illinois

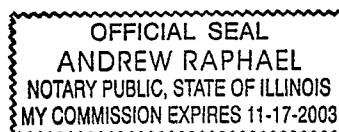
County of Cook

Subscribed and sworn to before me,

a notary public, this 12 day of July, 2000

NOTARY PUBLIC

Wilfred A. Mueller
SERVED BY
LASALLE PROCESS SERVERS



CHARTER MEMBER NATIONAL ASSOCIATION OF PROFESSIONAL PROCESS SERVERS.

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

V

Respondent.

HON NORMAN D KLINE

TO Faith Krzeminski ("Deponent")
WEST Forwarding Services
Hartford Centre, Suite 307
729 Route 83
Bensenville, IL 60106
Tel. (630) 787-0350

YOU ARE COMMANDED to appear to testify at the taking of a deposition at the
Law Offices of Jonathan Clark Green, P C , 350 North LaSalle Street, Suite 800,
Chicago, Illinois, 60610, on Monday, July 24, 2000, at 1 00 p m.

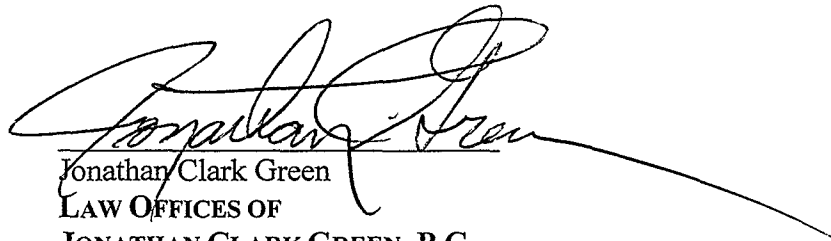
The Deponent will be required to testify to all facts and circumstances surrounding the initiation of the subject shipment through to its conclusion and any

related litigation, as well as to the policies and procedures of WEST Forwarding Services and its related entities. In addition, Deponent shall produce any and all documents in his or her possession related to the subject shipment and the policies and procedures of WEST Forwarding services and its related entities.

These items will be inspected and may be copied at the time of the deposition. You will not be required to surrender the original items. You may condition the appropriation of the copies upon the payment in advance of the reasonable cost of preparation. You have the right to object to the production pursuant to this subpoena at any time before production by giving written notice to the attorney whose name appears on this subpoena.

If you fail to (1) appear as specified, or (2) object to this subpoena, you may be in contempt of Court. You are subpoenaed by the attorney whose name appears on this subpoena and unless excused from this subpoena by the attorney or the Court, you shall respond to this subpoena as directed.

Dated. July 11, 2000.



Jonathan Clark Green
LAW OFFICES OF
JONATHAN CLARK GREEN, P.C.
350 North LaSalle Street, Suite 800
Chicago, IL 606 1 0-4798
(3 12) 494-1000

Affidavit of Process Server

00-04

Al Kogax d/b/a Galaway International vs. World Express Shipping et al
PLAINTIFF/PETITIONER DEFENDANT/RESPONDENT CASE #

Being duly sworn, on my oath, I Wilfred A. Mueller
declare that I am a citizen of the United States, over the age of eighteen and not a party to this action.

Service: I served Kim Kamphouse
with the (documents) ☒ Subpoena with \$ NONE NAME OF PERSON/ENTITY BEING SERVED Kim Kamphouse
witness fee and mileage

by serving (NAME) Kim Kamphouse

at ☐ Home ☒ Business WES Forwarding Services, 729 Rte 83 - Bensenville, Ill.
☐ on (DATE) July 13, 2000 at (TIME) 9:25 A-M.

Thereafter copies of the documents were mailed by prepaid, first class mail on (DATE) _____
from (CITY) _____ (STATE) _____

Manner of Service:

- ☒ By Personal Service.
☐ By leaving, during office hours, copies at the office of the person/entity being served, leaving same with the person apparently in charge thereof,
namely _____
☐ By leaving a copy at the defendant's usual place of abode, with some person of the family or a person residing there, of the age of 13 years or upwards, and informing that person of the general nature of the papers,
namely _____
☐ By posting copies in a conspicuous manner to the address of the person/entity being served.

Non-Service: After due search, careful inquiry and diligent attempts at the address(es) listed above. I have been unable to effect process upon the person/entity being served because of the following reason(s):

- ☐ Unknown at Address ☐ Evading ☐ Other: _____
☐ Address Does Not Exist ☐ Service Cancelled by Litigant
☐ Moved, Left no Forwarding ☐ Unable to Serve in a Timely Fashion

Service Attempts: Service was attempted on: () _____ DATE TIME _____, () _____ DATE TIME _____
() _____ DATE TIME _____, () _____ DATE TIME _____, () _____ DATE TIME _____

Description: ☐ Male ☒ Female ☐ White Skin ☐ Black Skin ☐ Yellow Skin ☐ Brown Skin ☐ Redskin ☐ Black Hair ☐ Brown Hair ☐ Blond Hair ☐ Gray Hair ☐ Red Hair ☐ White Hair ☐ Balding ☐ Mustache ☐ Beard ☐ 14-20 Yrs. ☒ 21-35 Yrs. ☐ 36-50 Yrs. ☐ 51-65 Yrs. ☐ Over 65 Yrs. ☐ Under 5' ☐ 5'0"-5'3" ☐ 5'4"-5'8" ☒ 5'8"-6'0" ☐ Over 6' ☐ Under 100 Lbs. ☐ 100-130 Lbs. ☒ 131-160 Lbs. ☐ 161-200 Lbs. ☐ Over 200 Lbs.

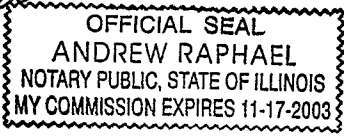
OTHER IDENTIFYING FEATURES: _____

State of Illinois County of Cook

Subscribed and sworn to before me,
a notary public, this 17 day of July, 2000

Andrew Raphael
NOTARY PUBLIC

Wilfred A. Mueller
SERVED BY
LASALLE PROCESS SERVERS



CHARTER MEMBER NATIONAL ASSOCIATION OF PROFESSIONAL PROCESS SERVERS.

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

V

Respondent.

HON NORMAN D KLINE

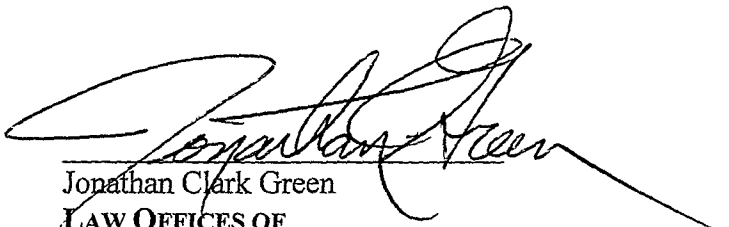
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These items will be inspected and may be copied at the time of the deposition. You will not be required to surrender the original items. You may condition the appropriation of the copies upon the payment in advance of the reasonable cost of preparation. You have the right to object to the production pursuant to this subpoena at any time before production by giving written notice to the attorney whose name appears on this subpoena.

If you fail to (1) appear as specified, or (2) object to this subpoena, you may be in contempt of Court. You are subpoenaed by the attorney whose name appears on this subpoena and unless excused from this subpoena by the attorney or the Court, you shall respond to this subpoena as directed.

Dated. July 11, 2000.



Jonathan Clark Green
LAW OFFICES OF
JONATHAN CLARK GREEN, P.C.
350 North LaSalle Street, Suite 800
Chicago, IL 60610-4798
(312) 494-1000